

CITY CONTRACT NO. _____

USE AGREEMENT

An agreement between the City of Cheyenne, Wyoming, a municipal corporation organized and existing under the laws of the State of Wyoming, 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and Creative Outdoor, a corporation organized and existing under the laws of the State of Wyoming, whose principal address 8875 Hidden River Parkway, Suite 300, Tampa, FL 33637 ("Company"), to grant the Company the non-exclusive use of the public right-of-way for the placement of advertising and to grant the Company the exclusive right to construct and install benches, shelters, and concrete pads within and along City bus routes, upon which advertising may be sold, and establishing a fee for use of the City right-of-way.

Section 1. Definitions. For the purposes of this agreement, the following terms mean:

- a. Sidewalk - that portion of a right-of-way, other than the roadway, which is designed or intended primarily for the use of pedestrians.
- b. Location - a discreet area within a sidewalk or along a public right-of-way which has been approved by the City for the placement of a bench or shelter, or both.
- c. Orientation - the positioning of a bench or shelter with respect to the nearest sidewalks, streets, and rights-of-way.

Section 2. Permission Granted; Term and Other Requirements.

- a. Permission to Install Benches/Shelters. Subject to the terms of this agreement, the City grants the Company exclusive permission to install benches, shelters and pads within and along the City's public rights-of-way, at such locations as designated by the City pursuant to subsection c. of this Section. No bench or shelter will be installed at any location solely for the advertisement value of the location.
- b. Term of Agreement. This Agreement is effective when all parties have executed it and approvals have been granted by the governing body of the City of Cheyenne and shall remain in effect for ten (10) years, unless sooner terminated by as provided in Section 4(h).
- c. Location and Removal. The locations of benches, shelters and pads within City rights-of-way is subject to the approval of the City's Public Works Director or his or her designee. In the case of federal, state, or county rights-of-way within the City, the Company will also be required to obtain necessary approvals from those governmental entities. The City for its rights-of-way may direct the removal of any bench, shelter or pad which presents a serious hazard to pedestrian or vehicular traffic by serving a written notice on the Company. The Company must remove the bench or shelter within twenty-four (24) hours after receipt of the written notice. The City may also, for its convenience and in its sole discretion, direct the removal of any bench, shelter, or pad, within its rights-of-way, even if a particular bench, shelter or pad does not present any immediate hazards, by serving a written notice on the Company. The Company shall remove any such bench, shelter or pad within seventy-two (72) hours after receipt of the written notice. If the Company fails to remove a bench,

shelter or pad in accordance with the City's written notice, the City may, in its discretion, remove any bench, shelter or pad referred to in the written notice. The reasonable and necessary costs of removal shall be the responsibility of the Company.

d. Bench/Shelter Placement and Specifications.

1. Shelters, benches, and pads will be placed at or near designated bus stops, or other locations, as specified by the City, along Cheyenne Transit Program bus routes, where passengers are routinely picked up or dropped off and where busses can safely stop. Only one shelter and one bench will be permitted at any one location. The City may, in its sole discretion, direct the removal or relocation of any shelter, bench, or pad, as needed to accommodate route changes in the manner provided by subsection c. of this Section. The Company shall be responsible for costs, loss of revenue, loss of profit, and other expenses and damages that may be incurred by the Company due to relocation of bus routes.
2. In addition to the other requirements of this Agreement relating to the location thereof, any bench, shelter or pad may be placed within the City's rights-of-way at bus stops in residential areas only upon the written approval of each owner of real property immediately adjacent to the location of the bench, shelter or pad and only upon the approval of the City Public Works Director or his or her designee.
3. The Company will construct and install all benches and shelters such that no portion of any bench or shelter is within four (4) feet of the adjacent curb. The purpose of this requirement is to ensure that pedestrians will have use of four (4) feet of unobstructed sidewalk width. In the event a bench or shelter cannot be placed on a sidewalk or other paved surface, the Company must construct or provide a concrete pad for the bench or shelter that extends at least six (6) inches beyond or outside of any vertical plane established by any point on the bench or shelter, and provided further that each such concrete pad shall be constructed and installed such that no portion of the same is within four (4) feet of the adjacent curb. The Company shall retain ownership of any pads provided by the Company pursuant to this subsection and shall have the right to remove any such pad upon the termination of this Agreement in accordance with its provisions.
4. No bench, shelter or pad shall be placed in such a manner as to interfere with the safe and efficient passage of pedestrians, especially persons with disabilities, or to impede access to or use of traffic-control devices or other street fixtures. Any bench or shelter provided or installed by the Company pursuant to this Agreement shall comply with applicable accessibility standards of the Americans with Disabilities Act.
5. It is the sole responsibility of the Company to ensure that all shelters, benches, and pads are placed within the public right-of-way and not on private property. The City is not responsible for the removal or relocation of any bench, shelter or pad which is located on private property, regardless of whether the City has approved any such location. At least ten (10) business days prior to the placement of a bench, shelter, or pad the Company shall provide written notice of the potential placement of the bench, shelter or pad to the owner or owners of the real property which is immediately adjacent to the right-of-way where the bench or shelter is to be located and shall obtain all approvals to the extent private property is to be used for the location of any bench, shelter or pad.

6. Each bench must have a maximum height of forty-eight inches (48") and a maximum length of eighty-four inches (84"). Each bench must weigh a minimum of three hundred pounds (300 lbs.) or be secured in place. No bench or shelter shall be coated or painted with fluorescent, day-glow, reflective or other bright or brilliant colors. In the event of damage to the City's real property or improvements associated with the installation of a bench, shelter or pad, the Company shall, within seventy-two (72) hours, repair any such damage or otherwise return the location to its original condition.

e. Advertising.

1. Except for the use of four (4) shelters previously placed by NextMedia for the display of advertising materials pursuant to a separate written agreement between the City and NextMedia, the Company has the exclusive right to sell or rent advertising space on the backs of benches and shelters which are provided by the Company pursuant to this Agreement. The subject matter of the advertising must be suitable for general public display and must not include advertising of alcohol or tobacco products; advertising that promotes illegal activities or transactions; or advertising that is misleading, deceptive, or obscene. The City has the right to direct the removal of advertising materials, words, pictures, and other signs which is likely to mislead or distract traffic in accordance with subsection d.,3., above.
2. On benches, advertising is limited to the front side of the back rest.
3. All services performed by the Company, including the sale of advertising, shall be in the capacity of an independent contractor and not as an officer, agent or employee of the City.

f. Maintenance and Repair.

1. The Company agrees to maintain all shelters, benches and advertising materials in an attractive, clean and safe condition, and within ten (10) days clean, repaint, replace or repair benches, shelters and advertising that have become damaged, weathered, defaced, or stolen, regardless of whether any shelter or bench has been negligently or intentionally damaged, vandalized or stolen.
2. The City may direct the removal of any bench or shelter that has been vandalized with graffiti by serving a written notice on the Company. The Company must repair or repaint any such bench or shelter within seventy-two (72) hours after receipt of written notice. In the event, the Company fails to repair or repaint any such bench or shelter within the time period directed by the City, the City shall have the right to proceed with such repainting or repair and the Company shall be responsible for the reasonable and necessary costs thereof.

g. Inspections and Reports.

1. The Company must inspect each bench and shelter at least once during each thirty (30) day period following the execution of this Agreement and shall correct any and all safety deficiencies noted during such inspections. On or before January 1st and July 1st of each year following the execution of this Agreement, the Company shall submit an itemized list of all locations where any shelter or bench is located. Each such itemized

list submitted by the Company shall be compared to a list maintained by the City. The City and the Company shall attempt to mutually resolve any differences between any list submitted by the Company and any contemporaneous list created by the City, provided however, that each party to this Agreement shall be responsible for the costs of resolving any discrepancy created by that party's negligence.

2. In the event the Company fails to conduct any inspection or fails to submit any report as required by subsection g., 1., the Company shall, in lieu of or in addition to other remedies for breach specified in this Agreement, be responsible for the payment of a liquidated penalty of Ten Dollars (\$10.00) for each day any such inspection or report is late.

h. Public Service Benches.

The Company shall provide public services benches for the promotion of the Cheyenne Transit Program and other City projects or events, provided however, that the total number of benches provided by the Company shall not exceed seven percent (7%) of the total number of benches placed by the Company pursuant to this Agreement. There shall be no charge for the display of advertising materials displayed on public service benches, if such advertising is requested by the City, except that the City will pay the Company standard advertising production charges. The Company shall not be obligated to produce or display advertising on public service benches without advance payment of production costs by the City. These public service benches will be placed within the right-of-way at locations to be designated by the City for the convenience of CTP passengers.

i. Additional Requirements. The Company agrees to:

1. Within ten (10) days after executing this agreement, the Company will designate a person, officer, or other representative to receive official communications from the City regarding this Agreement and the Company shall provide the name, business address, business telephone number and business e-mail address of the designee.
2. Within thirty (30) days after execution of this Agreement, remove all benches and shelters that are not in locations approved by the City. All existing benches and shelters that have already been placed as of the date of execution of this Agreement shall be brought into compliance with the standards of this Agreement within six (6) months.
3. The Company shall file Certificates of Insurance with the City of Cheyenne verifying each type of insurance coverage listed below. The Certificates of Insurance shall be submitted to and approved by the City of Cheyenne prior to commencement of performance under this Agreement.

<u>a. Type of Coverage</u>	<u>Minimum Limits</u>
Commercial General Liability (Including Products and Completed Operations	\$1,000,000 per Occurrence \$2,000,000 Aggregate
Business Automobile Liability	\$1,000,000 CSL

<u>Type of Coverage</u>	<u>Minimum Limits</u>
Workers' Compensation	Statutory
Or	
Employer's Liability	\$500,000 Each Accident \$500,000 Each Disease-Policy Limit \$500,000 Disease/Each Employee

- b. It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of this Agreement. It shall be an affirmative obligation upon the Company to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.
 - c. The City of Cheyenne shall be named as an additional insured on the Company's insurance policies, except workers' compensation, and the Company shall provide a copy of the endorsements providing this coverage.
 - d. The City has the right to reject a certificate of insurance if any insurer selected by the Company is widely regarded in the insurance industry as financially unstable. Any insurance company providing coverage under this contract shall have a minimum A.M. Best rating of A- (excellent).
 - e. The City has the right to review the insurance certificates of any or all subcontractors who may be engaged by the Company to perform its obligations hereunder. Further, the City requires that each subcontractor's insurance coverages be at least equivalent to that required of the Company.
 - f. The City shall have the right to consult with the Company's insurers and insurance agents for disclosure of relevant policy information, but the City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or the Company's obligations hereunder. Disclosure of relevant policy information would specifically involve, but is not limited to exclusions, deductibles, claims in progress which could significantly reduce the annual aggregate limit.
4. Each bench or shelter must have the Company's name and telephone number legibly placed on the front edge of the seat or shelter entrance. All existing benches and shelters shall meet this requirement within sixty (60) days after the execution of this Agreement.

Section 3. Use of Sidewalks. The Company will locate, construct and maintain its benches and shelters to avoid endangering the lives or property of the City or the general public, interfering with City improvements, or hindering or obstructing the use of public sidewalks. Whenever necessary to construct or maintain any bench or shelter, or to in any manner disturb or interfere with any sidewalk, the Company must, at its own expense, promptly replace and restore the sidewalk to the condition in which it existed before work commenced. If any sidewalk becomes uneven, unsettled or otherwise requires repair due to Company activities, the Company will, at its own expense,

promptly, upon receipt of notice from the City, make any necessary repairs. If the City makes public improvements, during this agreement, which alter the grade of any City right-of-way, the Company will, upon written notice from the City, at its own expense, promptly remove, or relocate any affected bench or shelter and restore all City property to the same condition which existed prior to the relocation. The Company agrees that it will obtain a permit from the City for each bench and shelter it locates on the City's right-of-way pursuant to this Agreement. Whenever the Company is working on any sidewalk, it will provide adequate warning and safety measures in compliance with federal law, the Cheyenne City Code and state statutes. If the Company fails to satisfactorily restore a sidewalk, the City may, at its discretion, refuse to issue further permits to the Company.

Section 4. General Provisions.

- a. Amendments. No change, modification, revision or amendment to this Agreement shall be effective unless the same has been reduced to writing and executed by all parties to this Agreement.
- b. Applicable Law. The construction, interpretation and enforcement of this agreement will be governed by the laws of the State of Wyoming. The courts of the State of Wyoming will have jurisdiction over this agreement and the parties, and the venue will be the First Judicial District, Court, Laramie County, Wyoming.
- c. Compliance with Laws. The Company will keep informed of and comply with all applicable federal, state and local laws, rules and regulations in the performance of this Agreement.
- d. Entirety of Agreement. This agreement consisting of seven (8) pages represents the entire and integrated agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.
- e. Indemnification; Governmental Immunity. In entering into the Agreement, the Company agrees to defend, hold harmless, and indemnify the City of Cheyenne, and its officials, employees, agents, and volunteers from and against any and all claims and costs, including attorney's fees, arising during or resulting from the Company's performance of this Agreement, and shall carry insurance as set forth in this Agreement. The Company acknowledges its understanding of this paragraph and realizes it may have a financial responsibility to the City. The City does not waive any applicable defenses and expressly reserves the right to invoke governmental immunity pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. 1-39-101, *et seq.*, for any claim arising out of performance of this agreement. The Company will also compensate the City in full for the loss, damage or destruction of the City's property that in any way arises from or is related to this Agreement or activities undertaken by the Company pursuant to this agreement.
- f. Notice. All notices arising out of or from the provisions of this Agreement will be in writing and given to the parties either by regular mail or personal delivery to the City at the address indicated above and to the Company to those persons or officers who have been designated to receive such notices pursuant to this Agreement.
- g. Termination. In the event of a breach of this Agreement, the City shall serve a written notice of breach and a demand for cure upon the Company, and the Company shall then have thirty

(30) days to cure its breach. In the event the Company fails to cure its breach within said thirty-day period or any extension thereof agreed to by the City, the City shall have the right to terminate this Agreement, to sue for specific performance of this Agreement, and to sue for damages for breach, as the City may determine in its sole discretion. The Company shall remain the owner of each bench, shelter, and pad provided and installed pursuant to this Agreement subject to the City's right to enforce any judgments which may be entered in favor of the City for breach of this Agreement. At the expiration of this agreement, or upon its earlier termination as provided herein, the Company shall, within thirty (30) days of termination, remove all benches, shelters, and pads unless any such bench, shelter or pad has been attached for the enforcement of any judgment debt owed to the City. Each bench, shelter or pad that is not removed following termination, within the time limit provided herein, shall become the property of the City of Cheyenne and may be disposed of, or used as the City chooses, without payment or other remuneration. The Company shall repair any and all damage to adjacent real property or improvements which may be damaged during the process of removal of any bench, shelter or pad.

- h. Forbearance. The waiver of any breach of any of the terms or conditions of this agreement will be limited to the act or acts constituting such breach and will never be construed as being a continuing or permanent waiver of any such terms or conditions, all of which are and will remain in full force and effect as to future acts or happenings notwithstanding any such individual waiver of any breach thereof.

Section 5. Construction Standards. All benches and shelters erected by the Company for the purposes of conducting its business shall comply with the Cheyenne City Code and the Unified Development Code in effect at the time of the commencement of construction of any such bench or shelter. The design and materials of each bench and shelter must be approved by the Transit Manager, in coordination with the City's Traffic Engineer, the City's Development Office, and such other City agencies and departments as required for the issuance of any permit necessary for the installation of any such bench or shelter.

Section 6. Compensation. For benches, the Company will pay to the City a sum equal to the greater of twenty percent (20%) of annual advertising revenue or One Hundred and Three Dollars (\$103.00) per ad face per year. For shelters, the Company will pay to the City a sum equal to the greater of five percent (5%) of annual advertising revenue or Forty-Five Dollars (\$45.00) per ad face per year. Payment of the compensation specified in this Section shall be paid in twelve (12) installments, the payment will be due within 90 days following the completion of the month the payment relates to. All funds will be paid to the City Treasurer. An accounting statement specifying all shelter and bench locations (and dates of installation) will be provided by the Company with each monthly payment.

Section 7. Assignment. The Company may not assign or transfer this agreement without the prior, express written permission of the City.

Section 8. Powers; Conflict. The Company acknowledges that its rights are subject to the police powers of the City to adopt and enforce general ordinances necessary for the safety and welfare of the public. Any conflict between the provisions of this agreement and any other present or future lawful exercise of the City's police power will be resolved in favor of the latter.

Section 9. Renewal. There is no right or expectation of renewal of this agreement. This agreement may not be renewed except upon the written affirmative mutual agreement of the parties. Any renewal of this agreement will not be effective until reduced to writing approved by the governing body of the City of Cheyenne.

Section 10. Signatures. The parties to this agreement, through their duly authorized representatives, have executed this agreement on the days and dates set out below and certify that they have read, understood, and agreed to the terms and conditions of this agreement.

Dated this _____ day of _____, 2023.

CITY OF CHEYENNE

BY:

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

CREATIVE OUTDOOR

BY:



Print Name: Liz Gayford

Title: CFO